

M. Das Binani (Binani Dharmshala) v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 September 2010 · WRIT - C No. - 57221 of 2010 · **Writ disposed of; billing grievance relegated to CGRF under cl. 7.10.**

HEADNOTE

A consumer who had paid a one-time settlement bill but alleged excess recovery was relegated to the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005. The High Court declined to examine the billing dispute on merits because the Code itself provides that forum, and directed that any complaint filed within one month be decided expeditiously on merits without a delay objection.

FACTUAL SUMMARY

The petitioners, including M. Das Binani (Binani Dharmshala), challenged a one-time settlement electricity bill. They had deposited the entire demanded sum of Rs. 2,88,105 on 12 May 2010, but alleged that the settlement charged an excess amount which remained unrefunded and that the licensee had not decided their grievance. The Division Bench, with consent, took up the writ at the admission stage without a counter-affidavit. Counsel for the contesting respondents invoked the Consumer Grievance Redressal Forum under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF as forum for billing grievances

HOLDING

Where a consumer who has paid a one-time settlement bill alleges excess charging and seeks refund, clause 7.10 of the U.P. Electricity Supply Code, 2005 supplies the Consumer Grievance Redressal Forum as the forum for that grievance, and the writ court will not entertain the dispute on merits. If the petitioners approach the Forum within one month with a certified copy of the order, the Forum shall consider and decide the complaint expeditiously on merits without taking any objection as to delay.

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Paid one-time-settlement excess-charge complaint sent to CGRF; delay waived if approached within one month.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ONE-TIME SETTLEMENT BILL CHARGED AN EXCESS AMOUNT LIABLE TO BE REFUNDED

Left to the Consumer Grievance Redressal Forum on merits.